

GORSUCH, J., dissenting

And any remaining doubt about whether the States and the federal government are truly separate sovereigns was ultimately “resolved by war.”²⁶

From its mistaken premise, the Court continues to the flawed conclusion that the federal and state governments can successively prosecute the same person for the same offense. This turns the point of our federal experiment on its head. When the “ONE WHOLE” people of the United States assigned different aspects of their sovereign power to the federal and state governments, they sought not to *multiply* governmental power but to *limit* it. As this Court has explained, “[b]y denying any one government complete jurisdiction over all the concerns of public life, federalism protects the liberty of the individual from arbitrary power.”²⁷ Yet today’s Court invokes federalism not to protect individual liberty but to threaten it, allowing two governments to achieve together an objective denied to each. The Court brushes this concern aside because “the powers of the Federal Government and the States often overlap,” which “often results in two layers of regulation.” *Ante*, at 690. But the

²⁶ *Testa*, 330 U. S., at 390. The Court tries to make the most of *McCulloch*, pointing out that Chief Justice Marshall distinguished between “‘the people of a State’” and “‘[t]he people of all the States.’” *Ante*, at 689. But of course our federal republic is composed of separate governments. My point is that the federal and state governments ultimately derive their sovereignty from one and the same source; they are not truly “separate” in the manner of, say, the governments of England and Portugal. The American people “‘split the atom of sovereignty,’” *ante*, at 688, to set two levels of government against each other, not to set both against the people. *McCulloch* is consistent with that understanding. In holding that the States could not tax the national bank, *McCulloch* sought to ensure that the national and state governments remained each in its proper sphere; it did not hold that the two governments could work in concert to abridge the people’s liberty in a way that neither could on its own.

²⁷ *Bond v. United States*, 564 U. S. 211, 222 (2011); see also *New York v. United States*, 505 U. S. 144, 181 (1992); *Alden v. Maine*, 527 U. S. 706, 758 (1999); *The Federalist* No. 51.

GORSUCH, J., dissenting

Court's examples—taxation, alcohol, and marijuana—involve areas that the federal and state governments each may regulate separately under the Constitution as interpreted by this Court. That is miles away from the separate sovereigns exception, which allows the federal and state governments to accomplish together what *neither* may do separately consistent with the Constitution's commands. As Justice Black understood, the Court's view today "misuse[s] and desecrat[es] . . . the concept" of federalism.²⁸ For "it is just as much an affront to . . . human freedom for a man to be punished twice for the same offense" by two parts of the people's government "as it would be for one . . . to throw him in prison twice for the offense."²⁹

III

A

If the Constitution's text and structure do not supply persuasive support for the government's position, what about a more thorough exploration of the common law from which the Fifth Amendment was drawn?

By 1791 when the Fifth Amendment was adopted, an array of common law authorities suggested that a prosecution in *any* court, so long as the court had jurisdiction over the offense, was enough to bar future reprosecution in another court. Blackstone, for example, reported that an acquittal "before any court having competent jurisdiction of the offence" could be pleaded "in bar of any subsequent accusation for the same crime."³⁰ For support, Blackstone pointed to *Beak v. Thyrrwhit*,³¹ a 1688 case in which the reporter described an acquittal in a foreign country followed by an attempted second prosecution in England that the

²⁸ *Bartkus*, 359 U. S., at 155 (dissenting opinion).

²⁹ *Abbate v. United States*, 359 U. S. 187, 203 (1959) (same).

³⁰ 4 Blackstone, Commentaries 335, and n. j.

³¹ 3 Mod. 194, 87 Eng. Rep. 124 (K. B.).

GORSUCH, J., dissenting

court held impermissible. Another treatise by William Hawkins likewise considered it “settled” as early as 1716 “[t]hat an Acquittal *in any Court whatsoever*, which has a Jurisdiction of the Cause, is as good a Bar of any subsequent Prosecution for the same Crime.”³²

What these authorities suggest many more confirm. Henry Bathurst’s 1761 treatise on evidence taught that “a final Determination in a Court having competent Jurisdiction is conclusive in all Courts of concurrent Jurisdiction.”³³ Nor was this merely a rule about the competency of evidence, as the next sentence reveals: “If A. having killed a Person in *Spain* was there prosecuted, tried, and acquitted, and afterwards was indicted here [in England], he might plead the Acquittal in *Spain* in Bar.”³⁴ Francis Buller’s 1772 treatise repeated the same rule, articulating it the same way.³⁵ And to illustrate their point, both treatises cited the 1678 English case of *King v. Hutchinson*. Although no surviving written report of *Hutchinson* remains, several early common law cases—including *Beak v. Thyrrwhit*,³⁶ *Burrows v. Jemino*,³⁷ and *King v. Roche*³⁸—described its holding in exactly the same way the treatise writers did: All agreed that it barred the retrial in England of a defendant previously tried for murder in Spain or Portugal.

When they envisioned the relationship between the national government and the States under the new Constitution, the framers sometimes referenced by way of compari-

³² 2 Hawkins § 10, at 372 (emphasis added).

³³ H. Bathurst, *Theory of Evidence* 39.

³⁴ *Ibid.*

³⁵ F. Buller, *An Introduction to the Law Relative to Trials at Nisi Prius* 241.

³⁶ 3 Mod. 194, 87 Eng. Rep. 124, *sub nom. Beake v. Tyrrell*, 1 Shower, K. B. 6, 89 Eng. Rep. 411, *sub nom. Beake v. Tirrell*, Comb. 120, 90 Eng. Rep. 379.

³⁷ 2 Str. 733, 93 Eng. Rep. 815 (K. B. 1726)

³⁸ 1 Leach 134, 168 Eng. Rep. 169 (K. B. 1775).

GORSUCH, J., dissenting

son the relationship between Wales, Scotland, and England.³⁹ And prosecutions in one of these places pretty plainly barred subsequent prosecutions for the same offense in the others. So, for example, treatises explained that “an Acquittal of Murder at a Grand Sessions in *Wales*, may be pleaded to an Indictment for the same Murder in *England*. For the Rule is, That a Man’s Life shall not be brought into Danger for the same Offence more than once.”⁴⁰ Indeed, when an English county indicted a defendant “for a murder committed . . . in Wales,” it was barred from proceeding when the court learned that the defendant had already been tried and acquitted “of the same offence” in Wales.⁴¹

Against this uniform body of common law weighs *Gage v. Bulkeley*—a civil, not criminal, case from 1744 that suggested *Hutchinson* had held only that the English courts lacked jurisdiction to try a defendant for an offense committed in Portugal. Because “the murder was committed in *Portugal*,” *Gage* argued, “the Court of King’s Bench could not indict him, and there was no method of trying him but upon a special commission.”⁴² But no one else—not the treatise writers or the other English cases that favorably cited *Hutchinson*—adopted *Gage*’s restrictive reading of that precedent.

In the end, then, it’s hard to see how anyone consulting the common law in 1791 could have avoided this conclusion: While the issue may not have arisen often, the great weight of authority indicated that successive prosecutions by different sovereigns—even sovereigns as foreign to each other as

³⁹ See, e. g., A. Amar, *America’s Constitution: A Biography* 45 (2005); *The Federalist* No. 5, at 50–51; *id.*, No. 17; Jay, *An Address to the People of the State of New York, in Pamphlets on the Constitution of the United States* 84 (P. Ford ed. 1788).

⁴⁰ 2 Hawkins § 10, at 372.

⁴¹ *King v. Thomas*, 1 Lev. 118, 83 Eng. Rep. 326 (K. B. 1664).

⁴² *Gage v. Bulkeley*, Ridg. T. H. 263, 270–271, 27 Eng. Rep. 824, 827 (1744).

GORSUCH, J., dissenting

England and Portugal—were out of bounds. And anyone familiar with the American federal system likely would have thought the rule applied with even greater force to successive prosecutions by the United States and a constituent State, given that both governments derive their sovereignty from the American people.

Unable to summon any useful preratification common law sources of its own, the government is left to nitpick those that undermine its position. For example, the Court dismisses *Beak* because “*Hutchinson* is discussed only in the defendant’s argument in that case, not the court’s response.” *Ante*, at 698. But the *Beak* court did not reject the *Hutchinson* argument, and counsel’s use of the case sheds light on how 17th- and 18th-century lawyers understood the double jeopardy bar. The Court likewise derides *King v. Thomas* as “totally irrelevant” because in the 17th century, Wales and England shared the same laws. *Ante*, at 698. But our federal and state governments share the same fundamental law and source of authority, and the Wales example is at least somewhat analogous to our federal system.⁴³ Finally, the Court complains that *Roche*’s footnote citing *Hutchinson* was added only in 1800, after the Fifth Amendment’s ratification. *Ante*, at 697–698. But that is hardly a point for the government, because even so it provides an example of a later reporter attempting to describe the *pre-existing* state of the law; nor, as it turns out, was the footnote even essential to the *Roche* court’s original analysis and conclusion reached in 1775, well before the Fifth Amendment’s ratification.⁴⁴ And among all these

⁴³ Indeed, though England ruled Wales at the time, a contemporaneous lawyer might have thought that Wales’ authority to prosecute a defendant derived at least in part from its earlier status as “an absolute and independent Kingdom” rather than purely from authority delegated by England. 1 Keb. 663, 83 Eng. Rep. 1172 (K. B. 1663); see *United States v. Lara*, 541 U. S. 193, 210 (2004).

⁴⁴ Indeed, everything that matters was contained in the 1775 version of the *Roche* case report. *Roche* was indicted in England for a murder committed in South Africa. “To this indictment Captain Roche pleaded

GORSUCH, J., dissenting

complaints, we should not lose the forest for the trees. The Court’s attempts to explain away so many uncomfortable authorities are lengthy, detailed, even herculean. But in the end, neither it nor the government has mustered a *single* preratification common law authority approving a case of successive prosecutions by separate sovereigns for the same offense.

B

What we know about the common law before the Fifth Amendment’s ratification in 1791 finds further confirmation in how later legal thinkers in both England and America described the rule they had inherited.

Start with England. As it turns out, “it would have been difficult to have made more than the most cursory examination of nineteenth century or later English treatises or digests without encountering” the *Hutchinson* rule.⁴⁵ In 1802, a British treatise explained that “an acquittal on a criminal charge in a foreign country may be pleaded in bar of an indictment for the same offence in England.”⁴⁶ Three decades later, another treatise observed (citing *Hutchinson*) that “[a]n acquittal by a competent jurisdiction abroad is a

Autrefois acquit.” *Roche*, 1 Leach 134, 168 Eng. Rep. 169. In response, the prosecution asked the court to charge the jury both with “this issue [the plea of *autrefois acquit*], and that of Not guilty.” *Id.*, at 135, 168 Eng. Rep., at 169. The court rejected that proposal, reasoning that “if the first finding was for the prisoner, they could not go to the second, because that finding would be a bar.” *Ibid.* Far from saying “absolutely nothing” about double jeopardy, *ante*, at 697, *Roche* is a serious problem for the government because it explicitly recognizes that a successful plea of *autrefois acquit*, even one based on a foreign conviction, would bar a prosecution in England. But the Court ignores this, focusing instead on the missing explanatory citation to *Hutchinson* that was, in any event, added shortly thereafter.

⁴⁵ Grant, Successive Prosecutions by State and Nation: Common Law and British Empire Comparisons, 4 UCLA L. Rev. 1, 9–11 (1956) (footnotes omitted).

⁴⁶ 2 L. MacNally, Rules of Evidence on Pleas of the Crown 428 (1802); see also 1 T. Starkie, Criminal Pleading 300–301, n. h (1814); 1 J. Chitty, Criminal Law 458 (2d ed. 1816).

GORSUCH, J., dissenting

bar to an indictment for the same offence before any other tribunal.”⁴⁷ In 1846, the Scottish High Court of Justiciary declared that “[i]f a man has been tried for theft in England, we would not try him again here.”⁴⁸ Twentieth century treatises recited the same rule.⁴⁹ In 1931, the American Law Institute stated that “[i]f a person has been acquitted in a court of competent jurisdiction for an offense in another country he may not be tried for the same offense again in an English Court.”⁵⁰ And in 1971, an English judge explained that the bar on “double jeopardy . . . has always applied whether the previous conviction or acquittal based on the same facts was by an English court or by a foreign court.”⁵¹ The Court today asks us to assume that all these legal authorities misunderstood the common law’s ancient rule. I would not.

Even more pertinently, consider how 18th-century Americans understood the double jeopardy provision they had adopted. The legal treatises an American lawyer practicing

⁴⁷ J. Archbold, *Pleading and Evidence in Criminal Cases* 89 (5th ed. 1834). Many more authorities are to the same effect. See, e.g., 1 *Encyc. of the Laws of England, Autrefois Acquit*, 424–425 (A. Renton ed. 1897); 2 J. Gabbett, *Criminal Law* 334 (1843); 2 E. Deacon, *Digest of the Criminal Law of England* 931 (1831); R. Matthews, *Digest of Criminal Law* 26 (1833); H. Nelson, *Private International Law* 368, n. y (1889); 1 W. Russell, *Crimes and Indictable Misdemeanors* 471–472 (2d ed. 1826); H. Woolrych, *Criminal Law* 129 (1862); 2 M. Hale, *Pleas of the Crown* 255 (1st Am. ed., S. Emlyn ed. 1847); H. Smith, *Roscoe on the Law of Evidence* 199 (8th ed. 1874).

⁴⁸ *Her Majesty’s Advocate v. MacGregor*, (1846) Ark. 49, 60.

⁴⁹ A. Gibb, *International Law of Jurisdiction in England and Scotland* 285–286 (1926); A. Gibson & A. Weldon, *Criminal and Magisterial Law* 225 (7th ed. 1919); S. Harris, *Criminal Law* 377 (9th ed. 1901); C. Kenny, *Outlines of Criminal Law* 469 (10th ed. 1920); H. Cohen, *Roscoe on the Law of Evidence* 172 (13th ed. 1908).

⁵⁰ ALI, *Administration of Criminal Law* § 16, p. 129 (Proposed Final Draft, Mar. 18, 1935).

⁵¹ *Regina v. Treacy*, [1971] A. C. 537, 562, 2 W. L. R. 112, 125 (opinion of Diplock, L. J.) (citing *Roche*, 1 Leach 134, 168 Eng. Rep. 169).

GORSUCH, J., dissenting

between the founding and the Civil War might have consulted uniformly recited the *Hutchinson* rule as black letter law. Chancellor Kent wrote that “the plea of *autrefois acquit*, resting on a prosecution [in] any civilized state, would be a good plea in any other civilized state.”⁵² Thomas Sergeant explained that “[w]here the jurisdiction of the United States court and of a state Court is concurrent, the sentence of either court, whether of conviction or acquittal, may be pleaded in bar to a prosecution in the other.”⁵³ William Rawle echoed that conclusion in virtually identical words.⁵⁴ Indeed, one early commentator wrote that a “principal reason” for the Double Jeopardy Clause was to prevent successive state and federal prosecutions, which he considered to be against “[n]atural justice.”⁵⁵ Nor did these treatises purport to invent a new rule; they claimed only to recite the traditional one.

This Court’s early decisions reflected the same principle. In *Houston v. Moore*, a Pennsylvania court-martial tried a member of the state militia for desertion under an “act of the legislature of Pennsylvania.”⁵⁶ The defendant objected that the state court-martial lacked jurisdiction because federal law criminalized the same conduct and prosecuting him in the state court could thus expose him to double jeopardy. In an opinion by Justice Washington, the Court disagreed and allowed the prosecution, but reassured the defendant that “if the jurisdiction of the two Courts be concurrent, the sentence of either Court, either of conviction or acquittal, might be [later] pleaded in bar of the prosecution before the other.”⁵⁷ In dissent, Justice Story thought the state court

⁵² 1 J. Kent, *Commentaries on American Law* 176 (1826).

⁵³ T. Sergeant, *Constitutional Law* 278 (1830).

⁵⁴ W. Rawle, *View of the Constitution* 191 (1825).

⁵⁵ J. Bayard, *Brief Exposition of the Constitution of the United States* 150–151 (1845).

⁵⁶ 5 Wheat. 1, 12 (1820).

⁵⁷ *Id.*, at 31.

GORSUCH, J., dissenting

lacked jurisdiction because otherwise the defendant would be “liable to be twice tried and punished for the same offence, against the manifest intent of the act of Congress, the principles of the common law, and the genius of our free government.”⁵⁸ But notice the point of agreement between majority and dissent: Both acknowledged that a second prosecution for the same underlying offense would be prohibited even if brought by a separate government.⁵⁹

Another case decided the same year also reflected the *Hutchinson* rule. In *United States v. Furlong*, one British subject killed another on the high seas, and the killer was indicted in an American federal court for robbery and murder. This Court unanimously held that “[r]obbery on the seas is considered as an offence within the criminal jurisdiction of all nations” that can therefore be “punished by all,” and there can be “no doubt that the plea of *autre fois acquit* [double jeopardy] would be good in any civilized State, though resting on a prosecution instituted in the Courts of any other civilized State.”⁶⁰

A number of early state cases followed the same rule. Indeed, the Court today acknowledges that Massachusetts,

⁵⁸ *Id.*, at 72.

⁵⁹ The Court insists that *Houston* involved an unusual state statute that “‘imposed state sanctions for violation of a federal criminal law.’” *Ante*, at 705. But so what? Everyone involved in *Houston* agreed that the defendant had been tried by a Pennsylvania court, under a Pennsylvania statute, passed by the Pennsylvania Legislature. And though there were separate sovereigns with separate laws, everyone agreed there was only one offense.

⁶⁰ 5 Wheat. 184, 197 (1820). To be sure, *Furlong* proceeded to indicate that an acquittal for *murder* in an American court would not have prohibited a later prosecution in a British court in this case. But that was only because the British courts would not have recognized the jurisdiction of an American court to try a murder committed by a British subject on the high seas. *Furlong*’s discussion is therefore perfectly consistent with the *Hutchinson* principle—a rule that applied only when both courts had “competent jurisdiction of the offence” and could actually place the defendant in jeopardy. See 4 Blackstone, Commentaries 365.

GORSUCH, J., dissenting

Michigan, and Vermont all followed *Hutchinson*. *Ante*, at 703.⁶¹ The Court agrees that South Carolina did too,⁶² but it believes that a later South Carolina case might have deviated from the *Hutchinson* rule. That decision, however, contains at best only “an inconclusive discussion coming from a State whose highest court had previously stated unequivocally that a bar against double prosecutions would exist.”⁶³

In the face of so much contrary authority, the Court winds up leaning heavily on a single 1794 North Carolina Superior Court decision, *State v. Brown*. But the Court’s choice here is revealing. True, *Brown* said that a verdict in North Carolina would not be “pleadable in bar to an indictment preferred against [the defendant] in the Territory South of the Ohio.”⁶⁴ But the Court leaves out what happened next. *Brown* went on to *reject* concurrent jurisdiction because trying the defendant “according to the several laws of each State” could result in him being “cropped in one, branded and whipped in another, imprisoned in a third, and hanged in a fourth; and all for *one and the same offence*.”⁶⁵ The North Carolina court viewed that result as “against natural justice” and “therefore [could] not believe it to be law.”⁶⁶ So it is that the principal support the Court cites for its position is a state case that both (1) regarded transgressions of the laws of a State and a U. S. territory as the “same offence,” and (2) expressed aversion at the thought of both jurisdictions punishing the defendant for that singular offense.⁶⁷

⁶¹ Citing *Commonwealth v. Fuller*, 49 Mass. 313, 318 (1844); *Harlan v. People*, 1 Doug. 207, 212 (Mich. 1843); *State v. Randall*, 2 Aik. 89 (Vt. 1827).

⁶² *State v. Antonio*, 7 S. C. L. 776 (1816).

⁶³ *Bartkus*, 359 U. S., at 158–159 (Black, J., dissenting).

⁶⁴ 2 N. C. 100, 101.

⁶⁵ *Ibid.* (emphasis added).

⁶⁶ *Ibid.*

⁶⁷ Perhaps the only early state-law discussion that truly supports the Court’s position is dicta in an 1834 Virginia decision. *Hendrick v. Commonwealth*, 32 Va. 707. Yet even that support proves threadbare in the

GORSUCH, J., dissenting

IV

With the text, principles of federalism, and history now arrayed against it, the government is left to suggest that we should retain the separate sovereigns exception under the doctrine of *stare decisis*. But if that's the real basis for today's result, let's at least acknowledge this: By all appearances, the Constitution as originally adopted and understood did *not* allow successive state and federal prosecutions for the same offense, yet the government wants this Court to tolerate the practice anyway.

Stare decisis has many virtues, but when it comes to enforcing the Constitution this Court must take (and always has taken) special care in the doctrine's application. After all, judges swear to protect and defend the Constitution, not to protect what it prohibits. And while we rightly pay heed to the considered views of those who have come before us, especially in close cases, *stare decisis* isn't supposed to be "the art of being methodically ignorant of what everyone knows."⁶⁸ Indeed, blind obedience to *stare decisis* would leave this Court still abiding grotesque errors like *Dred Scott v. Sandford*,⁶⁹ *Plessy v. Ferguson*,⁷⁰ and *Korematsu v. United States*.⁷¹ As Justice Brandeis explained, "in cases involving the Federal Constitution, where correction through legislative action is practically impossible, this Court has often overruled its earlier decisions. The Court bows to the lessons of experience and the force of better reasoning, recognizing that the process of trial and error, so

end, given that "the highest court of the same State later expressed the view that such double trials would virtually never occur in our country." *Bartkus*, 359 U. S., at 159 (Black, J., dissenting) (citing *Jett v. Commonwealth*, 59 Va. 933, 947, 959 (1867)).

⁶⁸ R. Cross & J. Harris, *Precedent in English Law*, intro. comment (4th ed. 1991) (attributing the aphorism to Jeremy Bentham).

⁶⁹ 19 How. 393 (1857).

⁷⁰ 163 U. S. 537 (1896).

⁷¹ 323 U. S. 214 (1944).

GORSUCH, J., dissenting

fruitful in the physical sciences, is appropriate also in the judicial function.”⁷²

For all these reasons, while *stare decisis* warrants respect, it has never been “an inexorable command,”⁷³ and it is “at its weakest when we interpret the Constitution.”⁷⁴ In deciding whether one of our cases should be retained or overruled, this Court has traditionally considered “the quality of the decision’s reasoning; its consistency with related decisions; legal developments since the decision; and reliance on the decision.”⁷⁵ Each of these factors, I believe, suggests we should reject the separate sovereigns exception.

Take the “quality of [the] reasoning.”⁷⁶ The first cases to suggest that successive prosecutions by state and federal authorities might be permissible did not seek to address the original meaning of the word “offence,” the troubling federalism implications of the exception, or the relevant historical sources. Between 1847 and 1850, the Court decided a pair of cases, *United States v. Marigold*⁷⁷ and *Fox v. Ohio*.⁷⁸ While addressing other matters in those decisions, the Court offered passing approval to the possibility of successive state and federal prosecutions, but did so without analysis and without actually upholding a successive conviction. Indeed, in place of a careful constitutional analysis, the *Fox* Court merely offered its judgment that “the benignant spirit” of prosecutors could be relied on to protect individuals from too many repetitive prosecutions.⁷⁹ We do not normally give precedential effect to such stray commentary.

⁷² *Burnet v. Coronado Oil & Gas Co.*, 285 U. S. 393, 406–408 (1932) (dissenting opinion) (footnotes omitted).

⁷³ *Pearson v. Callahan*, 555 U. S. 223, 233 (2009).

⁷⁴ *Agostini v. Felton*, 521 U. S. 203, 235 (1997).

⁷⁵ *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 248 (2019).

⁷⁶ *Janus v. State, County, and Municipal Employees*, 585 U. S. 878, 917 (2018).

⁷⁷ 9 How. 560 (1850).

⁷⁸ 5 How. 410 (1847).

⁷⁹ *Id.*, at 435.

GORSUCH, J., dissenting

Perhaps the first real roots of the separate sovereigns exception can be traced to this Court's 1852 decision in *Moore v. Illinois*.⁸⁰ As it did five years later and more notoriously in *Dred Scott*,⁸¹ the Court in *Moore* did violence to the Constitution in the name of protecting slavery and slaveowners. In *Dred Scott*, the Court held that the Due Process Clause prevented Congress from prohibiting slavery in the territories, though of course the Clause did nothing of the sort.⁸² And in *Moore*, the Court upheld a state fugitive slave law that it judged important because the States supposedly needed "to protect themselves against the influx either of liberated or fugitive slaves, and to repel from their soil a population likely to become burdensome and injurious, either as paupers or criminals."⁸³ The defendant, who had harbored a fugitive slave, objected that upholding the state law could potentially expose him to double prosecutions by the state and federal governments. The Court rejected that argument, reasoning simply that such double punishment could be consistent with the Constitution if the defendant had violated both state and federal law.⁸⁴ Yet notably, even here, the Court did not actually approve a successive prosecution.

Nor did the trajectory of the separate sovereigns exception improve much from there. The first time the Court actually approved an "instance of double prosecution [and] failed to find some remedy . . . to avoid it" didn't arrive until 1922.⁸⁵ In that case, *United States v. Lanza*,⁸⁶ the federal government prosecuted the defendants for manufacturing, transporting, and possessing alcohol in violation of the Na-

⁸⁰ 14 How. 13.

⁸¹ 19 How. 393.

⁸² *Id.*, at 450.

⁸³ *Moore*, 14 How., at 18.

⁸⁴ *Id.*, at 16.

⁸⁵ Grant, *The Lanza Rule of Successive Prosecutions*, 32 Colum. L. Rev. 1309, 1311 (1932).

⁸⁶ 260 U. S. 377 (1922).

GORSUCH, J., dissenting

tional Prohibition Act. The defendants argued that they had already been prosecuted by the State of Washington for the same offense. But, notably, the defendants did not directly question the permissibility of successive prosecutions for the same offense under state and federal law. Instead, the defendants argued that both of the laws under which they were punished really derived from the “same sovereign:” the national government, by way of the Eighteenth Amendment that authorized Prohibition. After rejecting that argument as an “erroneous view of the matter,” the Court proceeded on, perhaps unnecessarily, to offer its view that “an act denounced as a crime by both national and state sovereignties is an offense against the peace and dignity of both and may be punished by each.”⁸⁷ Given that the Court was not asked directly to consider the propriety of successive prosecutions under separate state and federal laws for the same offense, it is perhaps unsurprising the Court did not consult the original meaning of the Double Jeopardy Clause or consult virtually any of the relevant historical sources before offering its dictum.

It matters, too, that these cases “were decided by the narrowest of margins, over spirited dissents challenging the basic underpinnings of those decisions.”⁸⁸ In *Moore*, Justice McLean wrote that although “the Federal and State Governments emanate from different sovereignties,” they “operate upon the same people, and should have the same end in view.”⁸⁹ He “deeply regret[ted] that our government should be an exception to a great principle of action, sanctioned by humanity and justice.”⁹⁰ *Bartkus* and *Abbate*, cases decided in the 1950s that more clearly approved the separate sovereigns exception, were decided only by 5-to-4 and 6-to-3 margins, and Justice Black’s eloquent dissents in

⁸⁷ *Id.*, at 381, 382.

⁸⁸ *Payne v. Tennessee*, 501 U. S. 808, 828–829 (1991).

⁸⁹ 14 How., at 22 (dissenting opinion).

⁹⁰ *Ibid.*

GORSUCH, J., dissenting

those cases have triggered an avalanche of persuasive academic support.⁹¹

What is more, the “underpinnings” of the separate sovereigns exception have been “erode[d] by subsequent decisions of this Court.”⁹² When this Court decided *Moore*, *Lanza*, *Bartkus*, and *Abbate*, the Double Jeopardy Clause applied only to the federal government under this Court’s decision in *Palko v. Connecticut*.⁹³ In those days, one might have thought, the separate sovereigns exception at least served to level the playing field between the federal government and the States: If a State could retry a defendant after a federal trial, then the federal government ought to be able to retry a defendant after a state trial. But in time the Court overruled *Palko* and held that the Double Jeopardy Clause *does* apply to the States—and, with that, a premise once thought important to the exception fell away.⁹⁴

Nor has only the law changed; the world has too. And when “far-reaching systemic and structural changes” make an “earlier error all the more egregious and harmful,” *stare decisis* can lose its force.⁹⁵ In the era when the separate sovereigns exception first emerged, the federal criminal code was new, thin, modest, and restrained. Today, it can make none of those of boasts. Some suggest that “the federal

⁹¹ See, e.g., Cassell, The Rodney King Trials and the Double Jeopardy Clause: Some Observations on Original Meaning and the ACLU’s Schizophrenic Views of the Dual Sovereign Doctrine, 41 UCLA L. Rev. 693, 708–720 (1994); Braun, Praying to False Sovereigns: The Rule Permitting Successive Prosecutions in the Age of Cooperative Federalism, 20 Am. J. Crim. L. 1 (1992); Amar & Marcus, Double Jeopardy Law After Rodney King, 95 Colum. L. Rev. 1, 6–15 (1995); King, The Problem of Double Jeopardy in Successive Federal-State Prosecutions: A Fifth Amendment Solution, 31 Stan. L. Rev. 477 (1979).

⁹² *United States v. Gaudin*, 515 U.S. 506, 521 (1995).

⁹³ 302 U.S. 319, 328–329 (1937).

⁹⁴ *Benton*, 395 U.S., at 794.

⁹⁵ *South Dakota v. Wayfair, Inc.*, 585 U.S. 162, 184 (2018) (internal quotation marks omitted).

GORSUCH, J., dissenting

government has [now] duplicated virtually every major state crime.”⁹⁶ Others estimate that the U. S. Code contains more than 4,500 criminal statutes, not even counting the hundreds of thousands of federal regulations that can trigger criminal penalties.⁹⁷ Still others suggest that “[t]here is no one in the United States over the age of 18 who cannot be indicted for some federal crime.”⁹⁸ If long ago the Court could have thought “the benignant spirit” of prosecutors rather than unwavering enforcement of the Constitution sufficient protection against the threat of double prosecutions, it’s unclear how we still might.

That leaves reliance. But the only people who have relied on the separate sovereigns exception are prosecutors who have sought to double-prosecute and double-punish. And this Court has long rejected the idea that “law enforcement reliance interests outweigh[h] the interest in protecting individual constitutional rights so as to warrant fidelity to an unjustifiable rule.”⁹⁹ Instead, “[i]f it is clear that a practice is unlawful, individuals’ interest in its discontinuance clearly outweighs any law enforcement ‘entitlement’ to its persistence.”¹⁰⁰ That is the case here.

The Court today disregards these lessons. It worries that overturning the separate sovereigns rule could undermine the reliance interests of prosecutors in transnational cases who might be prohibited from trying individuals already acquitted by a foreign court. *Ante*, at 686–687. Yet even on its own

⁹⁶ E. Meese, *Big Brother on the Beat: The Expanding Federalization of Crime*, 1 *Tex. Rev. L. & Pol.* 1, 22 (1997).

⁹⁷ See Wilson, *That Justice Shall Be Done*, 36 *No. Ill. L. Rev.* 111, 121 (2015).

⁹⁸ Clark & Joukov, *Criminalization of America*, 76 *Ala. L.* 225 (2015). See also Larkin, *Public Choice Theory and Overcriminalization*, 36 *Harv. J. L. & Pub. Pol’y* 715, 726 (2013) (“There are so many federal criminal laws that no one, including the Justice Department, the principal federal law enforcement agency, knows the actual number of crimes”).

⁹⁹ *Arizona v. Gant*, 556 U. S. 332, 350 (2009).

¹⁰⁰ *Id.*, at 349.

GORSUCH, J., dissenting

terms, this argument is unpersuasive. The government has not even attempted to quantify the scope of the alleged “problem,” and perhaps for good reason. Domestic prosecutors regularly coordinate with their foreign counterparts when pursuing transnational criminals, so they can often choose the most favorable forum for their mutual efforts. And because *Blockburger* requires an identity of elements before the double jeopardy bar can take hold, domestic prosecutors, armed with their own abundant criminal codes, will often be able to find new offenses to charge if they are unsatisfied with outcomes elsewhere.

*

Enforcing the Constitution always bears its costs. But when the people adopted the Constitution and its Bill of Rights, they thought the liberties promised there worth the costs. It is not for this Court to reassess this judgment to make the prosecutor’s job easier. Nor is there any doubt that the benefits the framers saw in prohibiting double prosecutions remain real, and maybe more vital than ever, today. When governments may unleash all their might in multiple prosecutions against an individual, exhausting themselves only when those who hold the reins of power are content with the result, it is “the poor and the weak,”¹⁰¹ and the unpopular and controversial, who suffer first—and there is nothing to stop them from being the last. The separate sovereigns exception was wrong when it was invented, and it remains wrong today.

I respectfully dissent.

¹⁰¹ *Bartkus*, 359 U. S., at 163 (Black, J., dissenting).

Syllabus

VIRGINIA URANIUM, INC., ET AL. *v.* WARREN ET AL.
CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FOURTH CIRCUIT

No. 16–1275. Argued November 5, 2018—Decided June 17, 2019

Petitioner Virginia Uranium, Inc., wants to mine raw uranium ore from a site near Coles Hill, Virginia, but Virginia law flatly prohibits uranium mining in the Commonwealth. The company filed suit, alleging that, under the Constitution’s Supremacy Clause, the Atomic Energy Act (AEA) preempts state uranium mining laws like Virginia’s and ensconces the Nuclear Regulatory Commission (NRC) as the lone regulator in the field. Both the District Court and the Fourth Circuit rejected the company’s argument, finding that while the AEA affords the NRC considerable authority over the nuclear fuel life cycle, it offers no hint that Congress sought to strip States of their traditional power to regulate mining on private lands within their borders.

Held: The judgment is affirmed.

848 F. 3d 590, affirmed.

JUSTICE GORSUCH, joined by JUSTICE THOMAS and JUSTICE KAVANAUGH, concluded that the AEA does not preempt Virginia’s law banning uranium mining. Pp. 767–780.

(a) Virginia Uranium claims that the AEA is best read to reserve to the NRC alone the regulation of uranium mining based on nuclear safety concerns. But the AEA contains no provision expressly preempting state law. More pointedly, it grants the NRC extensive and sometimes exclusive authority to regulate nearly every aspect of the nuclear fuel life cycle *except* mining, expressly stating that the NRC’s regulatory powers arise only “after [uranium’s] removal from its place of deposit in nature,” 42 U.S.C. §2092. And statutory context confirms this reading: If the federal government wants to control uranium mining on private land, it must purchase or seize the land by eminent domain and make it federal land, §2096, indicating that state authority remains untouched. Later amendments to the AEA point to the same conclusion. Section 2021 allows the NRC to devolve certain of its regulatory powers to the States but does nothing to extend the NRC’s power to activities, like mining, historically beyond its reach. And §2021(k) explains that States remain free to regulate the activities discussed in §2021 for purposes other than nuclear safety without the NRC’s consent. Virginia Uranium contends instead that subsection (k) greatly expands the AEA’s preemptive effect by demanding the displacement of any state

Syllabus

law enacted for the purpose of protecting the public against “radiation hazards.” But subsection (k) merely clarifies that nothing in § 2021 limits States’ ability to regulate the activities subject to NRC control for other purposes. In addition, the company’s reading would prohibit not only the States from regulating uranium mining to protect against radiation hazards but the federal government as well, since the AEA affords it no authority to regulate uranium mining on private land. Pp. 768–771.

(b) Virginia Uranium also submits that preemption may be found in this Court’s precedents, pointing to *Pacific Gas & Elec. Co. v. State Energy Resources Conservation and Development Comm’n*, 461 U. S. 190, which rejected a preemption challenge to a state law prohibiting the construction of new nuclear power plants after the Court observed that it was enacted out of concern with economic development, not for the purpose of addressing radiation safety hazards. But *Pacific Gas* concerned a state moratorium on construction of new nuclear power plants, and nuclear plant construction has always been an area exclusively regulated by the federal government. It is one thing to inquire exactly into state legislative purposes when state law comes close to trenching on core federal powers; it is another thing altogether to insist on the same exacting scrutiny for state laws far removed from core NRC powers. Later cases confirm the propriety of restraint in this area. See, e. g., *Silkwood v. Kerr-McGee Corp.*, 464 U. S. 238; *English v. General Elec. Co.*, 496 U. S. 72. This Court has generally treated field preemption as depending on *what* the State did, not *why* it did it. See, e. g., *Arizona v. United States*, 567 U. S. 387. And because inquiries into legislative purpose both invite well-known conceptual and practical problems and pose risks to federalism and individual liberty, this Court has long warned against undertaking potential misadventures into hidden state legislative intentions without a clear statutory mandate for the project, see, e. g., *Shady Grove Orthopedic Associates, P. A. v. Allstate Ins. Co.*, 559 U. S. 393, 404–405. Pp. 771–777.

(c) Virginia Uranium alternatively suggests that the AEA displaces state law through so-called conflict preemption—in particular, that Virginia’s mining law stands as an impermissible “obstacle to the accomplishment and execution of the full purposes and objectives of Congress,” *Hines v. Davidowitz*, 312 U. S. 52, 67. But any “[e]vidence of pre-emptive purpose,” whether express or implied, must be “sought in the [statute’s] text and structure.” *CSX Transp., Inc. v. Easterwood*, 507 U. S. 658, 664. Efforts to ascribe unenacted purposes and objectives to a federal statute face many of the same challenges as inquiries into state legislative intent. The only thing a court can be sure of is what can be found in the law itself. And the compromise that Congress actually struck in the AEA leaves mining regulation on private land to

Syllabus

the States and grants the NRC regulatory authority only *after* uranium is removed from the earth. It is also unclear whether laws like Virginia's might have a meaningful impact on the development of nuclear power in this country given the other available foreign and domestic sources of uranium. Pp. 777–780.

JUSTICE GINSBURG, joined by JUSTICE SOTOMAYOR and JUSTICE KAGAN, agreed with JUSTICE GORSUCH that the Commonwealth's mining ban is not preempted but concluded that his discussion of the perils of inquiring into legislative motive sweeps well beyond the confines of this case. Further, Virginia Uranium's obstacle preemption arguments fail under existing doctrine, so there is little reason to question whether that doctrine should be retained. Pp. 780–793.

(a) The Commonwealth has forbidden conventional uranium mining on private land. The AEA leaves that activity unregulated. State law on the subject is therefore not preempted, whatever the reason for the law's enactment. Pp. 786–787.

(b) Section 2021(k) lends no support for Virginia Uranium's cause. That provision is most sensibly read to clarify that the door newly opened for state regulation of certain activities for nuclear safety purposes left in place pre-existing state authority to regulate activities for nonradiological purposes. House and Senate Reports endorse this reading of § 2021(k). Pp. 787–788.

(c) Virginia Uranium leans heavily on a statement in *Pacific Gas & Elec. Co. v. State Energy Resources Conservation and Development Comm'n*, 461 U. S. 190, that “the Federal Government has occupied the entire field of nuclear safety concerns.” *Id.*, at 212. But neither in that case nor in later decisions in its wake—*Silkwood v. Kerr-McGee Corp.*, 464 U. S. 238; *English v. General Elec. Co.*, 496 U. S. 72—did the Court rest preemption on the purposes for which state laws were enacted. Indeed, in all three, the Court held that the laws at issue were not preempted. Moreover, the state law involved in *Pacific Gas* addressed an activity—construction of nuclear power plants—closely regulated by the AEA. Inquiry into why the state law at issue in that case was enacted was therefore proper under § 2021(k). The Commonwealth's mining ban, in contrast, governs an activity not regulated by the AEA. Pp. 788–789.

(d) The Solicitor General's argument—that the Commonwealth's mining ban is preempted because it is a pretext for regulating the radiological safety hazards of milling and tailings storage—is unpersuasive. To the degree the AEA preempts state laws based on the purposes for which they were enacted, § 2021(k) stakes out the boundaries of the preempted field. *National Meat Assn. v. Harris*, 565 U. S. 452, distinguished. Pp. 789–791.